

was served by mail and e-mail on October 9, 2026. To date, Defendant has not filed an opposition.

Analyses

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose Plaintiff’s Motion is deemed to be his consent to the granting of the motion.

Ruling

Plaintiff Lafayette Federal Credit Union’s Motion to Enter Judgment Against Defendant Samuel Foster Pursuant to Cal. Code of Civ. Proc. § 664.6 is **granted**. Plaintiff is ordered to prepare a proposed default judgment conforming to this order and e-file with the Court within five (5) days from the date of this hearing. The Court will retain jurisdiction over this matter for enforcement purposes pursuant to Cal. Code of Civ. Proc. § 664.6.

11. 9:00 AM CASE NUMBER: C24-03326
CASE NAME: ITRIA VENTURES LLC VS. ANKIT PANCHAL
***HEARING ON MOTION IN RE: ATTORNEYS FEES AND COSTS**
FILED BY: ITRIA VENTURES LLC

TENTATIVE RULING:

Summary

Plaintiff’s Motion for attorney’s fees & costs is **granted**.

Background

This action arises from Defendants’ breaches of written contracts, written guaranties and a settlement agreement. In 2023 Itria Ventures LLC (“Itria” or “Plaintiff”) and defendants Anderson Hospitality LLC; Ambe Hospitality LLC dba Days Inn and Suites; Yreka Hospitality LLC; Ambe Management Service, Inc.; Ankit Jagdishbhai Panchal; and Jagdishkumar Ranchhod Panchal (collectively “Defendants”) entered into four separate Receivables Sale Agreements dated March 24, 2023, June 21, 2023, August 28, 2023, and November 21, 2023 (collectively, the “RSAs”) and related guaranties that called for Itria to purchase a portion of merchant defendants’ accounts receivable, and for the individual defendants to guarantee the businesses’ compliance. Defendants subsequently breached the RSAs and guarantees.

In January 2024 the parties entered into a written Settlement Agreement (the “Settlement

Agreement”) and a Stipulation for Entry of Judgment (the “Stipulated Judgment”) in the event of default or breach. Defendants thereafter breached the Settlement Agreement. Itria filed a complaint on June 4, 2024. After the filing of that complaint, Defendants committed to abide by the settlement terms, so Plaintiff dismissed the complaint without prejudice. But thereafter Defendants breached the Settlement Agreement again, and Itria commenced the present action—with a new complaint—on December 9, 2024.

The Court granted Itria’s motion for an order entering the parties Stipulated Judgment on August 12, 2025, and entered the Stipulated Judgment on August 22, 2025, in the amount of \$204,280.76. (the “Judgment”). Notice of entry of the Judgment was served on August 22, 2025.

On October 7, 2025, Plaintiff” filed this Motion for attorney's fees & costs pursuant to Cal. Rules of Court (CRC) Rule No. 3.1702. Plaintiff’s Motion was supported by Notice, Memorandum of Points and Authorities and Declaration of Counsel Jason Takenouchi. The Motion was served on October 9, 2025. In this Motion, Plaintiff seeks to recover the attorneys’ fees and costs expended in this action. To date Plaintiff has incurred \$31,642.50 in attorneys’ fees and \$3,364.76 in costs.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), “all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing.” Nine court days before the hearing is January 14, 2026. No timely opposition was filed. Defendants filed an untimely opposition on January 20, 2026, which is six days late. No declaration accompanies Defendants’ late-filed opposition declaring facts that support good cause for Counsel’s failure to file the opposition timely. Accordingly, the Court does not consider the late-filed opposition.

Analyses

Counsel’s late opposition contains no explanation as to why he simply failed to comply with the deadline to file an opposition to Plaintiff’s motion for attorney's fees & costs. Unlike attorneys recently admitted to practice, Defendant’s Counsel cannot attribute inexperience for failing to file a timely opposition. Counsel has been in practice for over 50 years

A trial court has broad discretion to reject late-filed papers. (Cal. Rules of Court, rule 3.1300(d).) Plaintiff made no attempt to seek leave to file their opposition late and made no attempt to demonstrate good cause for having failed to adhere to the applicable deadline. *Rancho Mirage Country Club Homeowners Assn. v. Thomas B. Hazelbaker* (2016) 2 Cal.App.5th 252, 261-262. Moreover, a trial court does not abuse its discretion by refusing to consider late-filed papers when a party makes no attempt to seek leave to file papers late and does not attempt to show good cause for the late filing. *Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1146, which held party “provided no plausible explanation for its tardiness and the court acted within its discretion when it denied leave to file them.”

Ruling

Plaintiff’s Motion for attorney's fees & costs is granted the Court will execute the proposed order lodged by Plaintiffs on October 7, 2026. Defendants shall pay \$31,642.50 in attorneys’ fees and \$3,364.76 in costs no later than thirty (30) days from the date of this order.